

26STCP01194 26STCP01194

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCP01194 Hearing Date: September 8, 2026 Dept: 836

PETITION FOR ORDER FROM RELIEF FROM LATE CLAIM LAW

(GOV. CODE 946.6)

Date: 9/8/26

(1:30 PM)

Case: Latasha Stewart, et al. v. Los

Angeles Unified School District (26STCP01194)

TENTATIVE RULING:

I.

BACKGROUND

Petitioner Latasha Stewart, as guardian ad litem for her daughter Sasha Mulan Stewart ("Sasha"), filed this petition for relief from a government-claim deadline on March 24, 2026 against respondent Los Angeles Unified School District ("LAUSD"). Petitioner's underlying claim arises from injuries Sasha, who is Petitioner's six-year-old child, allegedly suffered on November 15, 2024, while under Respondent's care.

Petitioner retained counsel ("Counsel") for Sasha on December 6, 2024, and Counsel erroneously submitted a claim to the County of Los Angeles ("County") on January 16, 2025. The County rejected Petitioner's claim on May 8, 2025, as it was not the proper subject public entity.

Counsel contends he interviewed

Petitioner a second time on June 8, 2025, and only then discovered at that interview that LAUSD may be liable because Petitioner's child was injured during an after school care program. (Odiase Decl. ¶ 9.) This contention, however, appears to be false, as it is directly contradicted by the contents of the January 16, 2025 claim submitted by Counsel to the County, wherein Counsel stated: "The incident happened on LAUSD premises during school hours and occurred because LAUSD [was negligent in various respects]." (Lesser Decl. Exh. A, Attach. 1.)

Counsel submitted petitioner's claim to LAUSD on June 8, 2025. On June 28, 2025, LAUSD requested that Petitioner submit further documents in support of her claim. Counsel contends he provided further documents and received no response. On September 4, 2025, Counsel filed with LAUSD an Application for Leave to Present a Late Claim. On September 26, 2025, LAUSD denied the application.

On March 24, 2026, two days before the six-month deadline to file, Counsel filed the instant petition for relief from the claims deadline. On August 7, 2026, LAUSD filed a "limited opposition" that "opposes the petition to the extent relief is sought on the ground of mistake, inadvertence, surprise, or excusable neglect, and does not concede the factual assertions on which that ground rests." (Opp. at 2:6-7.)

II.

DISCUSSION

Before a suit for damages may be filed against a public entity, a claimant must present a timely written claim to the public entity, and the claim must have been acted upon by the entity or otherwise be deemed rejected. (Gov. Code § 945.4; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1777.) A claim relating to a cause of action for injury to person or personal property must be presented to the public entity no later than six months after the accrual of the cause of action. (Gov. Code § 911.2; *Munoz*, 33 Cal. App. 4th at 1776.)

If a claimant fails to present a claim within the statutory period, the claimant may apply "within a reasonable time not to exceed one year after the accrual of the cause of action" to the public entity for leave to present a late claim. (Gov. Code § 911.4(b).) If the public entity denies leave to present a late claim, a claimant may petition the Court under

Government Code, § 946.6 for relief from the requirements of Government Code § 945.4. (Munoz, 33 Cal.App.4th at 1777.)

“The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that .. [t]he person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.” (Gov. Code, § 946.6(c)(2).)

The Court agrees with LAUSD that Counsel has failed to demonstrate excusable neglect, given that Counsel well knew LAUSD may be liable for alleged injuries to Sasha Mulan Stewart before the claim deadline, as Counsel admitted as much in his January 16, 2025 claim submitted to the County. Nonetheless, it is undisputed that Sasha is the individual who suffered the alleged injury, damage, or loss, and that Sasha was a minor during all of the time specified in section 911.2. This is sufficient for mandatory relief, as, whatever fault may lie with Counsel, Sasha was not responsible for the neglect of Counsel in filing the petition untimely. (See *Hernandez v. County of Los Angeles* (1986) 42 Cal.3d 1020, 1031.)

The petition is GRANTED.